



Notification Waiver Determination

Kalari – De Gunst’s Gracemere Assets

Acquisition	Kalari Pty Ltd (Kalari), a subsidiary of Qube Bulk Pty Ltd (Qube Bulk), applied for a notification waiver in respect of its proposed acquisition of the assets and operations associated with the mine transport and logistics activities of De Gunst Transport Pty Ltd (De Gunst), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	29 July 2026

Parties to the Acquisition	The acquirer, Kalari, provides bulk logistics services for the Australian mining and resources industry. Its services are focused on ‘mine-to-market’ and mine resupply solutions, offering a range of mine, road, rail, storage, port, and ship services. Qube Bulk provides a range of bulk logistics and supply chain services across Australia. The target, De Gunst, is a private logistics and transport company, providing freight and haulage services across Queensland. It operates across the Central Queensland coalfields, providing transport services for mine resupply, predominately involving the transport of security sensitive ammonium nitrate (SSAN) for explosives suppliers, mining companies, and drilling and blasting service providers using bulk tipper trailers and tanker trailers. The Acquisition relates only to the assets and operations associated with the mine transport and logistics activities of De Gunst, which operates from a site in Gracemere, Queensland.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application, and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: the increment in share of supply of mine resupply logistics services arising from the Acquisition is expected to be small

	b. there are alternative providers of mine resupply logistics services in Queensland (including the Central Queensland region) and nationally c. there is low risk of foreclosure or other concerning vertical or conglomerate effects arising from the Acquisition. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC’s approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC’s interim guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act